

INFLUENCER COLLABORATION AGREEMENT

Fitness Influencer — Product Promotion Contract (Barter Collaboration)

Brand: TruYerba™ | Parent Company: DaFuel Innovation Pvt Ltd

Date: _____ Place: New Delhi

PARTIES TO THE AGREEMENT

Party A (Brand / Client): DaFuel Innovation Pvt Ltd (CIN: U10792DL2025PTC449951), a company incorporated under the Companies Act, 2013, having its registered office at INNOV8, Rasvilas, next to Select Citywalk Mall, Saket, District Centre, Delhi – 110017, acting through its registered trademark brand “TruYerba™” (hereinafter referred to as the “Company”).

Party B (Influencer): Ms. Shruti Upadhaya, Fitness Influencer (hereinafter referred to as the “Influencer”).
Instagram: @__s.h.r.i.s.t.i.__. Address: _____ Contact No.: _____

This Influencer Collaboration Agreement (“Agreement”) is entered into between the above-mentioned parties and sets forth the terms and conditions governing the promotional barter collaboration for TruYerba™, a registered trademark brand of DaFuel Innovation Pvt Ltd. Both parties agree to the following terms in good faith.

1. BRAND & PRODUCTS TO BE PROMOTED

The Influencer agrees to create and publish promotional content exclusively for TruYerba™, a registered trademark and brand of DaFuel Innovation Pvt Ltd. The products covered under this Agreement are:

- TruYerba™ Yerba Mate Power Gummies — A first-of-its-kind energy gummy formulated with Yerba Mate extract, crafted for active individuals and fitness enthusiasts.
- TruYerba™ Effervescent Energy Tablets — World’s first Yerba Mate-based effervescent tablet, pioneering an entirely new category in the energy supplement segment.

The Influencer shall position TruYerba™ products in alignment with an active, healthy, and performance-driven lifestyle, and shall at all times represent the brand with accuracy and authenticity.

2. SCOPE OF WORK & DELIVERABLES

- The Influencer shall deliver 2 (two) Instagram Reels and 3 (three) Instagram Stories per calendar month featuring TruYerba™ products.

- Each Reel shall have a minimum duration of 30 seconds and shall clearly feature, mention, or demonstrate the TruYerba™ product(s) in a fitness or wellness context.
- Each Story shall clearly feature or mention the TruYerba™ product(s), tag the Company's official Instagram account, and remain live for the standard 24-hour Instagram story duration; a screenshot of each Story (and its insights, where available) shall be shared with the Company for record-keeping.
- Reels must be published on the Influencer's primary Instagram account and remain live for a minimum of 6 months from the date of posting.
- Each Reel and Story must include: mandatory tag to TruYerba's official Instagram account, hashtags #TruYerba and #TruYerbaIndia, and a product-specific caption approved by the Company.
- A draft script/concept must be submitted to the Company for approval at least 5 business days prior to the scheduled shoot date.
- The Company shall provide TruYerba™ product samples and brand assets (logos, brand guidelines) to the Influencer in a timely manner each month.
- Optional cross-posting to YouTube Shorts or Facebook Reels shall be a value addition at no additional cost.

3. AGREEMENT DURATION

- This Agreement shall be effective for an initial **barter term of Four (4) Months** from the date of signing.
- Upon completion of the initial 4-month barter term, both parties shall jointly review performance as set out in Clause 9. Based on this review, the parties may mutually agree in writing to transition the collaboration to a **paid engagement** under Clause 4(B), continue on a barter basis under revised terms, or conclude the Agreement.
- Either party may opt not to renew/extend by providing 15 days' written notice before the expiry of the initial term.
- In the event of an extension or transition to a paid engagement, revised terms including compensation shall be mutually agreed upon in writing prior to commencement of the new term.

4. COMPENSATION & PAYMENT TERMS

(A) Barter Period (Months 1–4):

- No cash fee shall be payable during the initial 4-month term. In lieu of cash compensation, the Company shall provide the Influencer with TruYerba™ product hampers/samples of an approximate value of **INR 3,000/- (Rupees Three Thousand Only) per month**, dispatched at the start of each month against the agreed deliverables (2 Reels + 3 Stories).

- Total indicative value of the barter arrangement over the 4-month term: approximately INR 12,000/- (Rupees Twelve Thousand Only) in products.
- No products shall be dispatched for a month in which the script/concept has not received prior written approval from the Company.
- Applicable tax provisions, including Section 194R of the Income Tax Act, 1961 (tax deduction on benefits/perquisites) where applicable, shall be complied with by the Company.

(B) Post-Barter Evaluation & Transition to Paid Engagement:

- At the end of the 4-month barter term, the Company shall evaluate performance as per Clause 9. If the Company determines the collaboration to be satisfactory, the parties may mutually agree in writing to move to a paid engagement, with compensation per Reel/Story, payment schedule, and deliverables to be freshly negotiated and documented prior to commencement.
- If the parties do not agree to a paid transition, the Agreement shall lapse at the end of the 4-month term without further obligation on either party, save for deliverables already agreed and completed.

5. CONTENT GUIDELINES & BRAND STANDARDS

- All content must accurately represent the TruYerba™ brand identity, reflect an authentic fitness lifestyle, and maintain a positive brand image.
- The Influencer shall not make false, misleading, or exaggerated claims about TruYerba™ products, particularly regarding health or medical benefits.
- Content must comply with ASCI (Advertising Standards Council of India) guidelines and applicable regulations, including mandatory paid partnership / barter disclosures using #Ad, #Collaboration, #PaidPartnership, or #Gifted, as applicable.
- The Influencer shall not portray TruYerba™ products in a negative, offensive, controversial, or inappropriate manner.
- The Company reserves the right to request up to two (2) rounds of reasonable revisions before publishing, at no additional cost.
- The Company shall communicate revision requests within 3 business days of receiving the draft content.

6. INTELLECTUAL PROPERTY & USAGE RIGHTS

- TruYerba™ is a registered trademark of DaFuel Innovation Pvt Ltd. All rights, title, and interest in the TruYerba™ brand remain exclusively with DaFuel Innovation Pvt Ltd.
- All content (videos, scripts, captions) created under this Agreement shall be co-owned by both parties.

- DaFuel Innovation Pvt Ltd / TruYerba™ shall have a perpetual, royalty-free licence to repost, share, and use the published Reels and Stories across all official channels, website, and marketing collateral, with due credit to the Influencer.
- The Influencer shall not use the TruYerba™ or DaFuel brand names, logos, or product imagery for any purpose beyond this Agreement without prior written consent.
- The Company shall not edit or alter the Influencer's content in a manner that misrepresents the Influencer's opinions or identity.

7. EXCLUSIVITY

- During the term of this Agreement, the Influencer agrees not to promote, endorse, or collaborate with any direct competitor brand in the Yerba Mate, Energy Gummies, or Effervescent Energy supplement categories.
- The Influencer is free to continue existing collaborations in non-competing categories (e.g., fitness apparel, equipment, general protein supplements from non-competing brands).
- Any existing competing collaborations must be fully disclosed to the Company prior to signing this Agreement.

8. CONFIDENTIALITY

Both parties agree to keep the terms of this Agreement — including compensation/barter details, TruYerba™ product formulations, DaFuel business strategies, and all other proprietary information — strictly confidential. This obligation shall survive termination of this Agreement for a period of 2 (two) years.

9. PERFORMANCE REVIEW & TRANSITION TO PAID ENGAGEMENT

- At the end of the initial 4-month barter term, both parties shall jointly review: Reel and Story views and reach, Engagement rate (likes, comments, shares, saves), Follower attribution to TruYerba™ content, and Conversion/traffic metrics.
- Based on the review, the Company may offer a transition to a paid engagement with revised deliverables and/or compensation, as set out in Clause 4(B).
- Performance-based incentives such as bonuses tied to TruYerba™ conversion milestones may be introduced upon mutual agreement in any subsequent paid term.

10. TERMINATION

- Either party may terminate this Agreement by providing 15 (fifteen) days' written notice to the other party.

- The Company may terminate immediately and without notice in the following events: breach of content guidelines or ASCI norms; association of TruYerba™ products with harmful or offensive content; failure to deliver agreed Reels/Stories for two consecutive months without valid cause; or any conduct materially damaging the TruYerba™ or DaFuel brand reputation.
- In the event of termination, all approved and delivered Reels/Stories up to the date of termination shall be compensated (in products) as per Clause 4. No products shall be dispatched for incomplete or unapproved content.

11. REPRESENTATIONS & WARRANTIES

- The Influencer represents that: they have full authority to enter this Agreement; all content will be original and free of third-party IP infringement; they will personally create and appear in the content.
- The Company represents that: DaFuel Innovation Pvt Ltd holds all rights to the TruYerba™ brand and the products being promoted; the products are legally compliant, FSSAI-licensed, and safe for consumption; product samples and brand assets will be provided in a timely manner.

12. GOVERNING LAW & DISPUTE RESOLUTION

This Agreement shall be governed by and construed in accordance with the laws of India. Any dispute arising out of or in connection with this Agreement shall first be attempted to be resolved amicably through good-faith negotiation between the parties. If unresolved within 30 (thirty) days of written notice, it shall be subject to the exclusive jurisdiction of the courts in New Delhi.

13. GENERAL PROVISIONS

- **Amendments:** Any modifications must be in writing and signed by both parties.
- **Entire Agreement:** This document constitutes the entire agreement and supersedes all prior discussions, representations, or understandings between the parties.
- **Severability:** If any clause is found invalid or unenforceable, the remaining clauses shall continue in full force.
- **Force Majeure:** Neither party shall be liable for delays or failures caused by circumstances beyond their reasonable control.

IN WITNESS WHEREOF

Both parties have read, understood, and agreed to the terms of this Agreement, as evidenced by their signatures below.

FOR DAFUEL INNOVATION PVT LTD (Brand: TruYerba™)		INFLUENCER
Signature: _____	Signature: _____	Signature: _____
Name: Ankush Sharma	Name: Davinderpal Singh	Name: Shristi Upadhaya
Designation: Director	Designation: Director	Designation: Fitness Influencer
Date: _____	Date: _____	Date: _____
Place: New Delhi	Place: New Delhi	Place: _____

Note: TruYerba™ is a registered trademark of DaFuel Innovation Pvt Ltd. This Agreement shall be executed in two (2) originals, one retained by each party. A digitally signed copy shall be considered equally valid.